



DEPARTMENT OF MILITARY AND VETERANS AFFAIRS

Division of Veterans Affairs

OPERATIONS AND MAINTENANCE OF THE VETERANS MEMORIAL CEMETERY OF WESTERN COLORADO (VMCWC)

8 CCR 1509-1

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

1509.1 Authority.

This rule is adopted pursuant to the authority in section 28-5-708, C.R.S. and is intended to be consistent with the requirements of the State Administrative Procedures Act, section 24-4-101 et seq. (the "APA"), C.R.S. and the Internment of Deceased Veterans Act, sections 28-5-501 et seq. (the "Act"), C.R.S.

1509.2 Definitions.

"Colorado veteran" means a veteran as defined by the United States Department of Veterans Affairs who was a resident of Colorado upon his or her entry on active duty or who is a resident of Colorado upon his or her death.

"Dependent" means the child of a veteran. The child must be under 21 years of age, unmarried and living at home (or under 23 years of age if pursuing a full-time course of instruction at an approved educational institution) or an unmarried adult child who became permanently physically or mentally disabled and incapable of self-support before reaching 21 years of age, or before reaching 23 years of age if pursuing a full-time course of instruction at an approved educational institution.

"Eligible" means able to be interred or memorialized at the VMCWC. Eligibility is based on the requirements as set forth in Title 38 United States Code, Sections 2400-2402. Generally, If the veteran is eligible, as defined above, then his/her spouse and dependents, as defined herein, are eligible.

"Initial interment" means the first interment, i.e., burial or inurnment, of an eligible veteran or eligible spouse or dependent.

"Spouse" means the person who is or was married to a veteran (including a remarried surviving spouse who died on or after January 1, 2000, based on his or her prior marriage to the veteran) even if the veteran is not buried or memorialized at the VMCWC.

"VA" means the United States Department of Veterans Affairs.

"VMCWC" means the Veterans Memorial Cemetery of Western Colorado in Grand Junction.

1509.3 Interment/Inurnment Fees.

This rule establishes a fee schedule for services other than the initial interment of eligible veterans, their spouses and eligible dependents. These fees apply to, disinterment or re-interment of remains, spouses or dependents, and use of cemetery facilities.

While the costs of operating the VMCWC are borne by the residents of Colorado, the State may be reimbursed by VA for the first interment of eligible veterans. These reimbursements help fund

cemetery operations. As is the case with national veteran's cemeteries, there are no fees for initial interment of veterans or for their eligible spouses and certain eligible dependents.

A. [Expired 5/15/07 per House Bill 07-1167]

1509.4 Headstones and Niche Covers.

Normally, headstones and niche covers are provided by the VA, at no cost, for interments and inurnments. This includes cases where headstones and niche covers are updated or, because of an error, corrected.

There is no cost for initial and authorized subsequent installation(s) of headstones and/or niche covers, e.g., replacements due to the death of the surviving veteran, spouse or eligible dependent or correction of errors generated by the VMCWC, VA or supplier(s) authorized and approved by the veteran or his/her next-of-kin.

Once the inscription has been approved by the veteran or his/her next-of-kin and the headstone or niche cover has been received, any changes to the inscription at the request of the veteran or his/her next-of-kin resulting in replacement of the headstone or niche cover will result in an installation charge of \$50 for a headstone and \$15 for a niche cover.

1509. 5 Fee for Use of VMCWC Facilities. [Expired 5/15/07 per House Bill 07-1167]

Editor's Notes

History

Annotations

Rules 1509.3 A. and 1509.5 (adopted 05/11/2006) were not extended by House Bill 07-1167 and therefore expired 05/15/2007.